CASE COVER AND PARTIES

Riverside Development LLC v. Harbor Construction Partners, Inc. Confidential cas

RIVERSIDE DEVELOPMENT DISPUTE | CONFIDENTIAL LEGAL WORK PROD

EXECUTIVE SUMMARY

Riverside alleges that Harbor missed contractual milestones, submitted unsupport

PARTIES AND REPRESENTATIVES

Plaintiff/Owner: Riverside Development LLC, represented by Northstar Legal Grou

PROJECT DESCRIPTION

The project is a twelve-story mixed-use building with 184 residential units, ground

CONTRACT FORMATION

The parties executed the Master Construction Agreement on January 18, 2024. T

SCHEDULE BASELINE

The baseline schedule identifies excavation, foundation, structural frame, enclosu

ARTICLE 3 - NOTICE OF DELAY

A party discovering a material delay shall provide written notice within ten busines

SITE ACCESS AND CONDITIONS

Riverside delivered the initial site on February 1, 2024. Harbor reported undocume

PERMIT HISTORY

The foundation permit issued February 26, 2024. The Department of Buildings iss

DESIGN DOCUMENTS

The issued-for-construction drawings dated January 10, 2024 govern unless modi

DEFAULT NOTICE

On November 14, 2024, Riverside issued a preliminary notice identifying schedule

ARTICLE 5 - CURE PERIOD

The receiving party has thirty calendar days after valid notice to cure a material br

HARBOR RESPONSE

Harbor responded on November 21, 2024, disputing the characterization of delay

RECOVERY SCHEDULE

The recovery schedule moved interior framing to parallel work fronts and added S

MEETING MINUTES

The December 3 coordination meeting recorded open issues for facade anchors,

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ARTICLE 16 - INSURANCE

Harbor shall maintain commercial general liability, workers compensation, automo

INSURANCE CERTIFICATES

The certificate dated January 30, 2024 listed $2,000,000 per occurrence general l

ARTICLE 8 - PAYMENT OBLIGATIONS

Riverside must pay an approved payment application within twenty-five days after

PAYMENT APPLICATION 09

Application 09 requested $3,240,000 gross, less retainage and prior payments. M

PAYMENT DISPUTE

Harbor claimed the withheld amount was an improper setoff. Riverside responded

WATERPROOFING OBSERVATIONS

Inspection reports dated October 8 and October 22 identified membrane holidays,

REMEDIATION PLAN

Harbor proposed removing affected membrane, drying the substrate, applying prir

QUALITY CONTROL

The quality-control log records remedial work at grid lines N-4 through N-9. A Dec

ARTICLE 10 - CHANGE ORDERS

No change in contract sum or time is enforceable as a change order unless docur

CHANGE ORDER 04

Change Order 04 adds $186,400 for revised retail storefront mullions and grants f

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CHANGE DIRECTIVES

Three architect directives addressed fire-rated shaft walls and corridor ceiling acc

OWNER-CAUSED DELAYS

The record supports a nine-day delay associated with late selection of lobby stone

CONTRACTOR-CAUSED DELAYS

The critical-path report identifies late elevator submittals, insufficient framing labor

CONCURRENT DELAY ANALYSIS

The schedule expert concludes that owner and contractor delays overlapped from

DAMAGES OVERVIEW

Riverside claims liquidated damages, consultant fees, temporary security, and ca

ARTICLE 13 - INDEMNIFICATION

Harbor shall defend and indemnify Riverside from claims arising out of Harbor ope

THIRD-PARTY CLAIM

A neighboring owner alleged vibration damage during excavation. Harbor notified

SUBCONTRACTOR ISSUES

Metro Waterproofing submitted a notice of nonpayment and threatened demobiliz

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LIENS AND WAIVERS

A preliminary lien notice was received from Metro Waterproofing on February 2, 2

SAFETY RECORD

The project recorded two OSHA-reportable incidents involving subcontractor emp

ENVIRONMENTAL CONDITIONS

Testing identified petroleum-impacted soil near the former loading area. The envir

ARTICLE 16 - INSURANCE CLAIM

The builder-risk policy covers direct physical loss caused by a covered peril, subje

STORM EVENT

A severe storm on March 18, 2025 caused water intrusion at the east stair core. H

TESTING AND COMMISSIONING

The commissioning plan requires functional testing for HVAC, life safety, elevators

SUBSTANTIAL COMPLETION

Riverside may issue a certificate of substantial completion when the work is suffic

PUNCH LIST

The April 2025 punch list contains 214 items, including door hardware, paint touch

WARRANTY OBLIGATIONS

Harbor warrants construction in accordance with the contract and must correct co

ARTICLE 19 - GOVERNING LAW

The agreement is governed by the laws of the State of New York, without regard t

DISPUTE RESOLUTION

The parties must first meet through executive representatives, then participate in r

MEDIATION POSITION

Riverside seeks a completion plan, credit for defective work, and allocation of dela

EXPERT REPORT SUMMARY

The scheduling expert finds that Harbor failed to maintain a reliable contemporane

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EVIDENCE INDEX

Key evidence includes the Master Construction Agreement, baseline schedule, m

ARTICLE 22 - TERMINATION

Riverside may terminate for uncured material breach after written notice and expir

REMEDIES AND RESERVATIONS

The parties reserve all claims, defenses, offsets, lien rights, warranty rights, and r

COUNSEL REVIEW CHECKLIST

Confirm notice dates and contractual deadlines. Reconcile the critical-path analys

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